

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Zachary Herman	Team: Squad #11	CCRB Case #: 201806085	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 07/06/2018 5:00 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 1/6/2020	Precinct: 121
Date/Time CV Reported Tue, 07/17/2018 9:20 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 07/26/2018 11:05 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Priolo	06894	964711	121 PCT
2. POM Christophe Schiro	15133	956244	121 PCT
3. POM Joseph Dipaolo	4997	955886	121 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Kimberly Lajara	05365	964598	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christophe Schiro	Abuse: Police Officer Christopher Schiro threatened to arrest § 87(2)(b)	A . Exonerated
B . POM Joseph Dipaolo	Force: Police Officer Joseph Dipaolo used force against § 87(2)(b)	B . Exonerated
C . POM Joseph Priolo	Force: Police Officer Joseph Priolo used force against § 87(2)(b)	C . Exonerated

Case Summary

On July 17, 2018, Lt. Aiman Ahmed of the 121st Precinct called IAB regarding a use of force incident, generating original log #2018-27845, on behalf of § 87(2)(b). This complaint was received by the CCRB on July 26, 2018.

On July 6, 2018, between 4:00pm and 5:00pm, PO Christopher Schiro, PO Joseph Priolo, PO Kimberly Lajara, and PO Joseph Dipaolo of the 121st Precinct responded to a 911 call regarding a family dispute at § 87(2)(b) in Staten Island. After conducting an initial assessment and preparing to leave, the complainant's son informed the officers of a dispute inside the house. The officers observed § 87(2)(b) the complainant, and § 87(2)(b) arguing with the complainant's father, § 87(2)(b). PO Schiro began to order § 87(2)(b) and § 87(2)(b) to leave the apartment, or they would be arrested for trespassing (**Allegation A: Abuse of Authority, exonerated**). § 87(2)(b) was eventually arrested and charged with trespassing in the course of this incident.

PO Priolo and PO Lajara took § 87(2)(b) outside of the apartment. § 87(2)(b) was then placed in the left rear driver's side seat of the police vehicle. Officers ordered § 87(2)(b) to move to the center backseat of the vehicle, in order to transport her back to the 121st Precinct stationhouse for processing. § 87(2)(b) stated she could not move. PO Dipaolo began to attempt to remove § 87(2)(b)'s feet and legs from under the driver's side seat by pulling on her legs and feet (**Allegation B: Force, exonerated**). PO Priolo pulled on § 87(2)(b)'s arms (**Allegation C: Force, exonerated**).

All four officers in this case were equipped with body-worn camera footage, with three officers recording at two separate points during the case (BR01, BR02, BR03, BR04, BR05, BR06, BR07, originals).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Christopher Schiro threatened to arrest

§ 87(2)(b)

It is undisputed that § 87(2)(b) physically resided in a separated, § 87(2)(b) area of § 87(2)(b).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(b) testified that three police officers, PO Christopher Schiro, PO Kimberly Lajara, and another officer that § 87(2)(b) did not describe, responded to § 87(2)(b) on Staten Island. § 87(2)(b) stated that he and § 87(2)(b) do not rent the § 87(2)(b) apartment, but § 87(2)(b)'s father, § 87(2)(b) had been squatting in that apartment for more than one

month. § 87(2)(b) stated that in the course of the incident, § 87(2)(b) and the officers entered § 87(2)(b) the downstairs apartment. § 87(2)(b) was arguing with her father, § 87(2)(b) and was she very upset. § 87(2)(b) attempted to calm her down. The officers informed both § 87(2)(b) and § 87(2)(b) they were trespassing and instructed them to leave that apartment multiple times. After several minutes the officers issued instructions for § 87(2)(b) and § 87(2)(b) to leave. Because they failed to comply with these directions, § 87(2)(b) was handcuffed by PO Schiro. § 87(2)(b) asked why he was being arrested, and PO Schiro responded that he was trespassing. Briefly after § 87(2)(b) was handcuffed, PO Schiro told him that because § 87(2)(b) was being respectful, PO Schiro was going to uncuff him and not arrest him (BR08).

§ 87(2)(b) was not interviewed during this investigation. § 87(2)(b) stated that § 87(2)(b) did not want to participate in the investigation.

PO Schiro testified he responded to a call for a domestic dispute at § 87(2)(b) with his partner PO Joseph Priolo, along with PO Kimberly Lajara and PO Joseph Dipaolo. § 87(2)(b) was locked outside of his apartment. After a brief conversation with § 87(2)(b), § 87(2)(b) came outside and spoke to the officers, and assured them that he would allow § 87(2)(b) access to the downstairs apartment. The officers confirmed § 87(2)(b) could get back into the downstairs apartment, and began preparing to depart the scene. As the officers were preparing to leave, an adolescent male, § 87(2)(b) came outside of the house and told PO Schiro there was fighting inside. He did not describe what kind of fighting was taking place. The officers entered the downstairs apartment and observed § 87(2)(b) and § 87(2)(b) arguing with § 87(2)(b). All four officers spoke to § 87(2)(b) and § 87(2)(b) and explained multiple times that § 87(2)(b) and § 87(2)(b) had to leave the apartment because they were trespassing. The officers issued multiple warnings that if they did not leave, they would be arrested. Both refused to leave. After asking § 87(2)(b) several times to leave, PO Schiro placed him in handcuffs. Briefly after handcuffing § 87(2)(b) PO Schiro uncuffed him. He did this at his own discretion, assessing that § 87(2)(b) was not the aggressor in the situation, and because § 87(2)(b)'s son, § 87(2)(b) was present at the time and was § 87(2)(b) at the time of the incident (BR09).

§ 87(2)(g) PO Dipaolo added that officers attempted to explain the situation regarding § 87(2)(b)'s status as a tenant, and the fact that § 87(2)(b) and § 87(2)(b) were trespassing, for approximately five minutes prior to handcuffing § 87(2)(b) and § 87(2)(b). Both § 87(2)(b) and § 87(2)(b) were ordered to leave the apartment more than five times prior to being handcuffed. § 87(2)(b) and § 87(2)(b) informed PO Dipaolo that § 87(2)(b) had been residing in the downstairs apartment for more than thirty days. § 87(2)(b) calmed down when he was handcuffed (BR10).

§ 87(2)(g)

PO Lajara testified that she was assisting PO Priolo arrest § 87(2)(b) and therefore did not observe § 87(2)(b) get handcuffed. She did not have any subsequent discussions with any officers regarding § 87(2)(b) getting handcuffed (BR12).

Body worn camera footage taken by PO Schiro, PO Dipaolo, and PO Lajara shows that officers repeatedly explain to § 87(2)(b) that because § 87(2)(b) had resided in the downstairs apartment for a period exceeding six months, he was a legal resident and could not be summarily evicted. § 87(2)(b) confirmed at 00:03 in PO Lajara's video that § 87(2)(b) had been in the downstairs location for approximately six months. § 87(2)(b) states that they [he and his wife] will be back here [the downstairs location] every day at 01:25 in PO Lajara's video. After another minute of conversation, at 02:52, PO Dipaolo and PO Schiro confer briefly regarding § 87(2)(b) being arrested for trespassing. PO Schiro then handcuffs § 87(2)(b). Approximately one minute after PO Schiro handcuffed § 87(2)(b) he removes the handcuffs at 02:06 in his video. On PO Schiro's camera footage, he informs § 87(2)(b) that if he does not leave the location, § 87(2)(b) could be arrested at 01:50. BR01, BR02, BR03.



PO Schiro § 87(2)(b) Handcuffed.mp4



PO Dipaolo § 87(2)(b) Handcuffed.mp4



PO Lajara § 87(2)(b) Handcuffed.mp4

According to New York State Real Property Actions and Proceedings Law Article 7 Section 711, a tenant shall include an occupant of one or more rooms in a rooming house or a resident, not including a transient occupant, of one or more rooms in a hotel who has been in possession for thirty consecutive days or longer; he shall not be removed from possession except in a special proceeding (BR18). According to New York State Penal Law § 140.05, a person is guilty of trespass when he knowingly enters or remains in or upon premises (BR17).

§ 87(2)(b) and § 87(2)(b) had informed officers that § 87(2)(b) that he had resided in the downstairs apartment for more than thirty days. According to New York State law, an occupancy of a rooming house for more than thirty days may not be removed except by special proceeding.

§ 87(2)(g)

_____ it is recommended that
Allegation (A) Abuse of Authority be closed as **exonerated**.

Allegation (B) Force: Police Officer Joseph Dipaolo used force on § 87(2)(b)

Allegation (C) Force: Police Officer Joseph Priolo used force on § 87(2)(b)

§ 87(2)(b) testified that multiple officers ordered § 87(2)(b) multiple times to move to the middle seat of the police vehicle. § 87(2)(b) responded she could not move. One officer pushed her legs in attempting to move her, while other officers pulled on her arms. § 87(2)(b) resisted them by trying to hold herself in place. This lasted between one and three minutes. § 87(2)(b) did not have a clear view of what the officers were doing, because their bodies were blocking his view of § 87(2)(b)'s legs. After the struggle, § 87(2)(b) moved to the middle seat of the vehicle (BR08).

PO Dipaolo testified that § 87(2)(b) was screaming at officers not to touch her after being placed in the rear driver's side seat of the police vehicle. All four officers variously attempted to convince § 87(2)(b) to move to the middle seat of the vehicle for approximately five minutes. PO Dipaolo then informed § 87(2)(b) that if she did not move, he would have to physically move her to the middle seat. § 87(2)(b) responded she could not move. PO Dipaolo placed his hands on both of § 87(2)(b)'s legs in attempting to move her. § 87(2)(b) hooked her left foot under the front driver seat's lip. PO Dipaolo removed her left foot from under the seat, at which point § 87(2)(b) hooked her left foot under the door jamb, and wedged her right foot under the driver's seat. While he struggled with § 87(2)(b), § 87(2)(b) attempted to kick PO Dipaolo at least once. PO Dipaolo succeeded in removing § 87(2)(b)'s feet from under the seat, and she moved to the middle seat. In the process of removing § 87(2)(b)'s feet from the door jamb and under the front driver's seat, § 87(2)(b) stated that her toe had been injured. PO Dipaolo did not observe this injury (BR10).

PO Priolo's testimony § 87(2)(g) Additionally, he pulled on § 87(2)(b)'s arms while PO Dipaolo was removing her feet from under the seat. PO Priolo estimated that officers requested § 87(2)(b) move to the center seat "more than fifty times" prior to attempting to physically move her (BR11).

PO Schiro testified he did not recall officers using any physical force towards § 87(2)(b) during this incident. Upon being shown his body worn camera footage of the incident, PO Schiro stated he could not observe what specifically PO Dipaolo was doing with § 87(2)(b) while they argued (BR09).

§ 87(2)(g)

Body worn camera footage taken by PO Dipaolo shows him wrestling with § 87(2)(b) for one minute and twenty-two seconds, starting at 02:41. After all four officers present issue § 87(2)(b) multiple commands and requests to move to the middle seat of their vehicle, PO Dipaolo proceeds to the rear driver's side door. He then places his hand on § 87(2)(b)'s left foot, which is wedged under the driver's side door. After eleven seconds, PO Dipaolo manages to remove § 87(2)(b)'s left foot from underneath the front seat. Four seconds later, § 87(2)(b) attempts to kick PO Dipaolo. While § 87(2)(b)'s left foot is removed, she wedges her right foot at a

ninety-degree angle under the front seat. She then hooks her left foot under the door latch between the front door and the body of the vehicle. PO Dipaolo then removes her foot from under the door latch. After PO Dipaolo removes § 87(2)(b)'s foot from the door, § 87(2)(b) attempts to kick PO Dipaolo by flexing her leg, between 03:20 and 03:29. Between 03:33 and 03:42, PO Dipaolo attempts and finally succeeds at removing § 87(2)(b)'s right foot from under the seat, while keeping a hold on her left ankle. § 87(2)(b) then places her legs and feet between the driver's side passenger seat and the back of the driver's seat. Between 03:52 and 04:13, PO Dipaolo keeps his left hand on § 87(2)(b)'s left leg while continuing to issue her commands to move the middle. § 87(2)(b) yells as PO Dipaolo to leave her alone. At 04:30, PO Dipaolo exits the vehicle. As PO Dipaolo struggles with § 87(2)(b)'s feet, PO Priolo pulls on § 87(2)(b)'s arms. § 87(2)(b) is lying across the seats, with her upper body at an angle to the seats. PO Priolo pulls on § 87(2)(b)'s left arm while PO Dipaolo pulls at § 87(2)(b)'s legs and feet. PO Priolo lets go of § 87(2)(b) as PO Dipaolo does. PO Priolo is not observed pulling on § 87(2)(b)'s arms in such a way to generate sufficient force to dislodge her feet from under the seat.



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NYPD Patrol Guide Procedure 221-02 defines active resisting as physically evasive movements to defeat a member of the service's attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody. According to sub-section 11 of this procedure, members of service should apply no more than a reasonable force necessary to gain control of a resisting subject (BR20).

§ 87(2)(a) PBH §18(6)

§ 87(2)(b) testified that he observed § 87(2)(b) resist officers' attempts to move her to the middle seat of the vehicle. PO Dipaolo testified that he pulled on § 87(2)(b)'s feet to move her to the middle of the vehicle after issuing her numerous commands to move the middle seat. PO Priolo testified he pulled on § 87(2)(b)'s arms to move her to the middle of the vehicle after issuing her numerous commands to move her to the middle of the vehicle. PO Lajara's testimony § 87(2)(g) Body worn camera footage corroborates officers' testimony. § 87(2)(g)

Therefore, it is recommended that **Allegation (B) Force** and **Allegation (C) Force** be closed as **exonerated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (BR13)
- This is the first CCRB complaint involving § 87(2)(b) (BR14).
- PO Schiro has been the subject of two CCRB cases with two allegations and no substantiations.
- PO Dipaolo has been the subject of four CCRB cases with seven allegations and no substantiations.
- PO Priolo has been the subject of one CCRB case with one allegation and zero substantiations.

Mediation, Civil and Criminal Histories

- Mediation was not available in this case because the primary complainant was arrested.
- On September 27, 2018, a FOIL request for any notices of claim submitted in regard to this case was made to the New York City Comptroller's Office. The results of this request will be added to the case file upon their receipt (BR21).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Squad No.: 11

Investigator:	_____	Investigator Zachary Herman	_____
	Signature	Print Title & Name	Date
Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date
Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date

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